



POLICE DEPARTMENT CITY OF NEW YORK

May 15, 2017

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Luis Marte
Tax Registry No. 941288
44 Precinct
Disciplinary Case No. 2016-16576

Charges and Specifications:

1. Police Officer Luis Marte, on or about May 19, 2016, at approximately 0424, while assigned to 044 PCT and on duty, in the vicinity of 1353 Edward L. Grant Highway, Bronx County, was discourteous, in that he stated to Person A, in sum and substance, I DON'T GIVE A FUCK, without sufficient legal authority.
P.G. 203-09, Page 1, Paragraph 2 – DISCOURTESY
2. Police Officer Luis Marte, on or about May 19, 2016, at approximately 0424, while assigned to 044 PCT and on duty, in the vicinity of 1353 Edward L. Grant Highway, Bronx County, used offensive language toward Person B based upon her gender in that he called her, in sum and substance, a BIRD BIT CH, without sufficient legal authority.
P.G. 203-10, Page 1, Paragraph 1 – OFFENSIVE LANGUAGE
3. Police Officer Luis Marte, on or about May 19, 2016, at approximately 0424, while assigned to 044 PCT and on duty, in the vicinity of 1353 Edward L. Grant Highway, Bronx County, used offensive language toward Person B based upon her gender in that he called her, in sum and substance, a BITCH, without sufficient legal authority.
P.G. 203-10, Page 1, Paragraph 1 – OFFENSIVE LANGUAGE
4. Police Officer Luis Marte, on or about May 19, 2016, at approximately 0424, while assigned to 044 PCT and on duty, in the vicinity of 1353 Edward L. Grant Highway, Bronx County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he threatened to arrest Person C without sufficient legal authority.
P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT – PROHIBITED CONDUCT
5. Police Officer Luis Marte, on or about May 19, 2016, at approximately 0424, while assigned to 044 PCT and on duty, inside of the 44th Precinct stationhouse, Bronx County,

wrongfully used force, in that he punched Person A with a closed fist, about Person A face, without police necessity.

P.G. 203-11 – USE OF FORCE

6. Police Officer Luis Marte, on or about May 19, 2016, at approximately 0424, while assigned to 044 PCT and on duty, inside of the 44th Precinct stationhouse, Bronx County, wrongfully used force, in that he punched Person A in the forehead, without police necessity.

P.G. 203-11 – USE OF FORCE

Appearances:

For CCRB-APU: Hamilton Lee, Esq. & Raasheja Page, Esq.
Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

For the Respondent: John Tynan, Esq.
Worth, Longworth & London, LLP
111 John Street – Suite 640
New York, NY 10038

Hearing Date:

April 20, 2017

Decision:

Not Guilty

Trial Commissioner:

ADCT Nancy R. Ryan

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 20, 2017.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges.

Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Not Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

It is undisputed that on May 19, 2016, at approximately 0424 hours, Respondent, assigned to the 44 precinct, was patrolling in uniform, in a marked police van, in the vicinity of 1353 Edward L. Grant Highway, Bronx, where the Budda Lounge is located. Person A who had just exited the club with friends, became engaged in a dispute with another male. Respondent arrested Person A and transported him back to the 44 precinct. While at the 44 precinct, Person A sustained an injury to his head. He refused medical treatment at the time, but went to a hospital emergency room that evening. The medical records indicate that Person A presented with a bruise and swelling in his scalp area and an abrasion to his right elbow. A CT scan of his head and an x-ray of his cervical spine were negative. He was advised to take Tylenol as needed and was released. (CCRB Ex. 4)

The areas in dispute in this case concern what, if anything, was said by Respondent to Person A and two women who were with him at the scene outside the Budda Lounge and the details of Person A interaction with Respondent once he was at the 44 precinct.

CCRB did not present any witnesses at trial. Instead, they introduced three audio tapes and transcripts. Person A (CCRB Ex. 1A and B) and Person B (CCRB Ex. 2 A and B) were interviewed in person by a CCRB investigator and signed verifications for their statements. CCRB Ex. 3A and B is purported to be a statement made by Person C, however, there is no verification to accompany this statement. It is the statement of someone who CCRB called and spoke to solely by phone. The phone number for this person was provided to CCRB by Person A during his interview.

In his statement, Person A indicated that he left the Budda Lounge about 4:30 AM on May 19, 2016, with his girlfriend, Person B, and a person he identified as a co-worker named Person C. He doesn't know her last name. Person B was walking up the block to get the car when a couple of males started to talk to her. Person A stated that he approached the males and told them Person B was his girlfriend and they should, "relax, cool." He thought they respected that so he walked back to where Person C was waiting for her car. As Person B continued to walk, the males continued to "disrespect" Person B. Person A then approached the males a second time and when he told them to relax they, "got aggressive and started cursing at me and, you know, thinking they was tough ..." Person A told the CCRB investigator that the males were drunk so Person B got between him and the males and told them to relax. Person A stated that two of the males tried to jump him. One of the males had his fists up like he was going to swing at Person A, but nobody ever hit or swung at each other. Person A stated he was arguing with the males for approximately five minutes. His girlfriend was "holding him." He stated it, "was just like an intimidation type of thing." (CCRB Ex. 1B, at 3-4, 11, 13-14, 20)

Person A further stated that as the males were walking towards him, he started to walk backwards. At this point a "paddy wagon" pulled up with officers including Respondent. According to Person A, there had been no prior warning to leave the area. Person A stated that while the other officers were being calm, Respondent, "was being a complete asshole, screaming." The other officers were telling everyone to leave. In response to later questioning by CCRB, Person A stated that Respondent didn't say anything to him before he put the handcuffs on him. Person A stated that Respondent grabbed him, arrested him and placed him in the police van. Person A further stated that Respondent told him, "you want to be a tough guy, I'm going to show you some tough guy." When Person A said he didn't do anything, Respondent said, "I don't give a fuck." Person A said he told Respondent he didn't do anything. According to Person A, Person B was screaming that Person A didn't do anything when Respondent got out of the van and said to Person B, "shut up bitch, you a bitch, ah, bitch. you want me to arrest you bitch." Person A stated that Respondent called Person B a bitch, "at least 17 times." (CCRB Ex. 1B, at 5, 18, 21-22, 49)

Person A stated that once he was in the van, Respondent sat in the passenger seat and for the whole ride to the precinct he kept telling him, "... you're a tough guy, I want you to show me how tough you are, watch when we get back to the station. I'm going to show you who's tough." Person A further stated that when they got to the precinct, Respondent did not stop at the desk but took him directly to a hallway in an area with holding cells. There was no one else there and Respondent took off Person A handcuffs and tripped him. Person A fell to the floor where he hit the right side of his head. According to Person A, Respondent then punched him at least six more times in the face. Three or four other officers walked by but did nothing to stop it. After that, Respondent picked Person A up, put the handcuffs back on and threw him into the holding

cell. Person A stated that Respondent took off his shirt and had on a vest with a skull logo from the Punisher movie on it. Person A stated that he then fell asleep for about three hours. (CCRB Ex. 1B, 6-7, 31, 38-40)

In her statement, Person B told CCRB that after leaving the Budda lounge, while Person A and a coworker, Person C were standing on a street corner, she started to walk to get her car. She further stated that two males, who she described as really intoxicated, tried to talk to her and there was, "kissing and stuff." Person A approached the males, spoke to them and then walked away. When the males spoke to Person B a second time, Person A returned and exchanged words with the two males who tried to attack him. Person B stated that the two males put their hands up towards Person A. Person B, stated that she, "blanked out," and was panicked but she tried to, "not let him fight." As Person A was backing away, the police arrived, put Person A in handcuffs and placed him in the van. Person B was asking the police why they were arresting Person A when one officer, who was "right next to her face", told her to shut up and called her a "bird bitch," about three times. The officer asked her if she wanted to be arrested. Her coworker pulled her back and told her to leave the officer alone because she would make it worse. According to Person B, the officer was cursing at Person A and they were going, "back and forth." (CCRB Ex. 2B, 3-4, 13-14, 17, 21) When Person B saw Person A the next day one side of his face was, "completely bruised." She described all of his head as being swollen. (CCRB Ex. 2B, 6-7)

In a CCRB initiated telephonic interview with a person purported to be Person C, Person C stated that she saw the police handcuff Person A and another male and that one officer "abruptly just started going crazy." She stated that after the officer put Person A in the car, he turned around and, "started going all crazy on Person A's girlfriend..." She further stated

that the officer started cursing and yelling at Person A's girlfriend and calling her a fucking bitch, a dumb bitch, and a bird bitch. She further stated that when the officer got in the girlfriend's face, people started grabbing the girlfriend and telling her to just leave. (CCRB Ex. 3B, 3-6) Person C stated that she did not have any interaction or conversation with the officer that was cursing. (CCRB Ex. 3B, 16)

Respondent testified that he has been assigned to the 44 precinct since 2006 and had previously responded to the area around the Budda Lounge to address altercations, stabbings and other incidents. On May 19, 2016, he was in uniform, patrolling in a marked police van assigned as a response vehicle to assist sector vehicles as needed. At approximately 0424 hours, Respondent was in the vicinity of the Budda Lounge, having been directed to monitor the area. (Tr. 20-24) Respondent testified that he observed a small crowd outside the club who were "fighting, arguing, pushing and shoving." The officers turned on their vehicle lights and used the loudspeaker to tell the crowd to disperse. Some people did leave, but a smaller group of four to six people went further up the street and started arguing and fighting there. Respondent again used the loudspeaker and asked the group to disperse. The group again walked up the street and started arguing and fighting again. For the third time, Respondent used the loudspeaker and told the group to disperse. One person started to walk away but the others started fighting again after Respondent turned off his vehicle lights. (Tr. 24-26) At this point, Respondent told his partner that we have to put handcuffs on people because they are not following our orders. Respondent and his partner, "grabbed the two males that were squared off and we placed them in handcuffs." Respondent had not seen either Person A or the other male swing at, or punch, anyone. Respondent testified that at first neither of the men offered any resistance and that they had both calmed down once they were in handcuffs. The rest of the group, except for two females who

were with Person A. had dispersed. According to Respondent, the women were irate and were cursing at Respondent and saying, "why the fuck are you putting him in cuffs?" Respondent testified that he explained to the women that he was going to give the two men summonses and they would be free in about 15 to 20 minutes. (Tr. 26-28, 47) Respondent further testified that they ultimately couldn't give the men summonses at the scene since a crowd was forming and they decided for safety reasons to take the back to the precinct to issue the summonses. At that point the women started screaming and cursing even more. One of them wanted Respondent to help her find her car keys. Respondent testified that he tried to help find the keys by checking Person A pockets with his consent and then using a flashlight to look on the ground. When he didn't find any keys, one of the women became very irate and in response to Respondent's suggestion that she check her pockets, said she didn't have them in her fucking pockets and asked the Respondent if he wanted to check up her pussy for them. (Tr. 29-30) Respondent acknowledged that he was talking loudly at the scene and asked the women to disperse several times but he doesn't recall calling them any curse words. (Tr. 32-33)

Respondent and his partner then transported Person A back to the precinct. Respondent testified that Person A became more agitated in the van and started kicking the side door panels. Respondent further testified that when they arrived at the precinct, he brought Person A to the front desk and that Person A was very irate and upset at that time. (Tr. 33-34) Person A was brought to the holding cell area where he is uncuffed. Respondent testified that once Person A was uncuffed, he lunged at Respondent and made contact with his chest, pushing him backwards. Respondent grabbed Person A by the waist and took him to the ground. (Tr. 34-37) The right side of both Respondent and Person A hit the ground first. Respondent testified that he wrestled Person A to get him into position to be able to handcuff him again. (Tr. 39) According to Respondent,

Person A was flailing his arms and pushing off the ground. (Tr. 40) After he was finally able to handcuff Person A he stood him up and noticed he had some redness on the right side of his face. Respondent testified that he told his sergeant what happened and called for an ambulance for Person A. (Tr. 41-42) When the ambulance arrived, Person A refused medical attention. (Tr. 43) Respondent was asked by defense counsel if he ever had to punch Person A in the face while he was in the cell with him. Respondent answered that, "during that time, I have no idea what was going on. I was trying to just get my composure and I was using the techniques that were given to me by the Police Academy to subdue the individual at the time." (Tr. 43)

Respondent charged Person A with resisting arrest and disorderly conduct. (Tr. 54) On cross-examination, when asked if he wrote on an arrest form that Person A had pushed him, Respondent testified that he wrote that Person A was being confrontational, which to him means that he became aggressive. (Tr. 56) When questioned further as to whether he noted that he used physical force in the arrest, Respondent testified that he did not use physical force in the arrest, which took place at the scene. (Tr. 57) Respondent further noted that he wrote on the form that in an attempt to handcuff Person A, he took him down to the ground. (Tr. 58)

Based on the credible evidence in this case, I find that the CCRB has not met their burden of proving the specifications by a preponderance of the evidence.

The evidence presented by CCRB to support the specifications is the hearsay statements of Person A and Person B and a transcript of a telephonic interview with a person purporting to be Person C. While hearsay is admissible in these proceedings and can support findings of fact, it has inherent weaknesses. For example, the trier of fact is not able to observe the demeanor of the witness, nor can the statements themselves be tested through cross-examination. As just one specific example from this case, while counsel for CCRB argues that

they have proven Specification 2 by a preponderance of the evidence since all three statements indicate Respondent called Person B a "bird bitch", those statements were not able to be tested for any possible collusion by the three people. None of the witnesses could be questioned if they had ever spoken to each other about their testimony prior to making the statements. No questions were able to be asked about the exact nature of the relationships between the people providing the statements. Nor was there any possibility to explore any biases the interviewees may have had. With regard to telephonic interviews, the value of these type of statements is compromised even further since the interviewer is not able to verify any identification documents of the interviewee or know if anyone else was present with the interviewee at the time of the interview, or see if the interviewee was consulting with any documentation during the interview. As in the above example, no one was present to verify that the interviewee wasn't either a different friend of Person A or wasn't in fact reading answers about the words "bird bitch" from a document provided by Person A.

In contrast to the evidence presented by the CCRB in this case, Respondent took an oath and testified at the trial. The court finds that Respondent testified in a credible manner. Based on his observable demeanor, he was a calm witness throughout his testimony. His account of events was logical. His account was also more plausible in certain important areas than that of Person A. For instance, it does not seem likely that if Respondent was going to purposefully beat, or punch, Person A, that he would free him from his handcuffs first, yet Person A testified that that was the sequence of events. The more likely version of events is that presented by Respondent, that when he did free Person A from the constraints of the handcuffs, that Person A moved towards the Respondent and Respondent then had to use force to get Person A back into control.

Respondent's testimony also can be contrasted to the statements made by Person A in that there were no obvious exaggerations in Respondent's account of events such as in Person A statement that Respondent called Person B a bitch at least "17" times.

Counsel for CCRB has argued that Respondent is not credible because he testified that he did not know if during his struggle with Person A he landed a punch on Person A while they were in the holding cell area. I find that in some ways this testimony actually adds to the credibility of the Respondent. It would have been easy to just deny ever landing a punch and blaming any redness on Person A's face on the fall to the ground. Person A himself even said he hit his face when he fell.

Finally, the photos and medical records in this case, do not support Person A's version of events. Person A claimed that he was punched six times to the face. The medical records indicate there was bruising and swelling to the right scalp area. It seems unlikely that if Respondent punched Person A in the face six times, the only injury would be some swelling and bruising all in the same area, which incidentally happens to be the area where Person A said he hit his face on the floor. The CT scan and x-ray taken the next day were both negative. The arrest photo also shows that while there is a bruised looking area at Person A right scalp, there are no indications of any other bruises or cuts visible in the front facing photo of Person A.

Specifications 1, 2, and 3, all concern comments allegedly made by Respondent towards Person A and Person B at the scene of the arrest. Respondent denied making the comments. Based on the analysis above I find that Respondent was a credible witness and that CCRB did not present sufficient credible evidence to meet their burden of proof. I find Respondent Not Guilty of Specifications 1, 2, and 3.

With regard to specification 4, I find that the CCRB has also failed to meet their burden of proving the charge by a preponderance of the credible evidence. In the telephonic statement from the person purported to be Person C, the speaker states that she had no interaction or conversation with Respondent. Neither of the other hearsay statements contain any evidence to support this charge either. While Respondent agreed on cross-examination that he told Person C that if she didn't move she would be arrested, in his later testimony it became clear that he did not know which woman was Person C. (Tr. 49) I therefore find Respondent Not Guilty of Specification 4.

Specification 5 charges that Respondent wrongfully used force in punching Person A with a closed fist about his face. I have credited Respondent's testimony and find that while he is not sure if he landed any punch during his struggle with Person A, there is no credible evidence that Respondent intentionally punched Person A in the face with a closed fist. The actions taken by Respondent were actions necessary to control Person A who was lunging at Respondent. Person A was in the process of going to attack Respondent and Respondent used the force necessary to bring Person A to the ground and get him into a position where he could be placed in handcuffs. I find Respondent Not Guilty of Specification 5.

Specification 6 is similar to Specification 5 but eliminates the "closed fist" language and charges that Respondent wrongfully punched Person A in the forehead, as opposed to about the face. For the reasons outlined for Specification 5 above, I also find Respondent Not Guilty of Specification 6.

APPROVED

OCT 10 2017
James P. O'Neill
JAMES P. O'NEILL
POLICE COMMISSIONER

Respectfully submitted,

Nancy R. Ryan
Nancy R. Ryan
Assistant Deputy Commissioner Trials